

KMVTECH EDUCATION**IPL1 · Module 5****Trade marks enforcement**

Lesson: Infringement and passing off

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Infringement of a registered mark occurs when a person uses in the course of trade a sign that is identical or similar to the registered mark in relation to identical or similar goods/services, where there is a likelihood of confusion (or, for identical marks on identical goods, confusion may be presumed).

Well-known marks receive broader protection against dilution or unfair advantage even on dissimilar goods. Comparative advertising and descriptive uses may be permitted under honest practices.

Passing off protects unregistered goodwill: claimant must show goodwill, misrepresentation leading to deception, and damage (or likelihood).

- Remedies parallel copyright: injunctions, damages, accounts, delivery up, and border measures.

2. DETAILED RULES AND APPLICATION

Example: a look-alike packaging that causes consumers to believe the product comes from the brand owner is classic infringement or passing off.

For registered marks, compare signs, goods and likelihood of confusion; for unregistered, prove the classic trinity of passing off.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Enforcement in Uganda combines court action, URSB procedures, customs recordal and criminal provisions against counterfeiting. Evidence of confusion, survey evidence and expert testimony can be decisive.

Exam trap: treating every similar mark as automatically infringing without the similarity-and-confusion analysis, or neglecting the goodwill requirement in passing off.

Method: (registered) prove registration + use of similar sign + similar goods + confusion; (unregistered) prove goodwill + misrepresentation + damage; then select remedies and consider coexistence or settlement.

Closes the trade-mark sequence before patents.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. When does use of a similar sign infringe?
2. What extra protection do well-known marks receive?
3. Elements of passing off?
4. Name three remedies for infringement.
5. How can customs assist?
6. Why is survey evidence sometimes used?

Exam tip: Confusion (or classic trinity) is the heart of the case.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.